

BC662798 BC662798

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-09-01

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Case Number: BC662798 Hearing Date: September 1, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Greg Mooradian

, et al.;

Plaintiffs,

vs.

Erla Dogg Ingjaldsdottir

, et al.,

Defendants.

Case No.:

BC662798

Hearing Date:

September 1, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Withdraw from Arbitration

MOVING PARTY: Plaintiffs Greg Mooradian and Debra
Mooradian, individually and as trustees of the Greg and Debra Mooradian Family
Trust

RESPONDING
PARTY: No response

Motion to Withdraw
from Arbitration

The court considered the moving
papers filed in connection with this motion. No opposition was filed.

DISCUSSION

Plaintiffs Greg Mooradian
and Debra Mooradian, individually and as trustees of the Greg and Debra
Mooradian Family Trust ("Plaintiffs"), move the court for an order permitting
them to withdraw from arbitration and proceed in this court pursuant to Code of
Civil Procedure sections 1281.98 and 1281.99, and for monetary sanctions in the
amount of \$42,120.10.

"Perceiving that
a 'company's failure to pay the fees of an arbitration provider' as required by
an arbitration agreement or applicable law 'hinders the efficient resolution of
disputes and contravenes public policy,' in 2019 the California Legislature passed
Senate Bill No. 707 and added sections 1281.97 and 1281.98 to the California
Arbitration Act (CAA) (§ 1280 et seq.)."¿
(De Leon v. Juanita's Foods (2022) 85 Cal.App.5th 740, 750

[internal citations and internal footnote omitted].) Under section 1281.98, “[i]n an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, that the drafting party pay certain fees and costs during the pendency of an arbitration proceeding, if the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the due date, the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel the employee or consumer to proceed with that arbitration as a result of the material breach.” (Code Civ. Proc., § 1281.98, subd. (a)(1).)

The court finds

that Plaintiffs have met their burden to show that they are entitled to the requested relief pursuant to Code of Civil Procedure sections 1281.98 and 1281.99. Plaintiff presents evidence that, on October 3, 2025, AAA sent an invoice to the defendants in this action for \$3,507.50 with a due date of October 3, 2025. (Gibson Decl. Ex. J.) The defendants had not paid their share as of November 20, 2025, over 30 days past the due date. (Gibson Decl. Ex. K.) As there is no opposition to this motion, the court finds that the defendants are in material breach of the arbitration agreement and Plaintiffs are entitled to relief from arbitration pursuant to Code of Civil Procedure section 1281.98.

The court grants

Plaintiffs' request for sanctions. (Code Civ. Proc., § 1281.99, subd. (a).) The court finds that a reasonable amount of sanctions is \$35,920.10 ((18.4 hours x \$475 [Gibson] = \$8,740.00) + (15 hours x \$400 [Brunolli] = \$6,000) + (3.6 hours x \$300 [Nolfo] = \$1,080.00) + (4 hours x \$200 [paralegal Angus] = \$800) + \$10,807.50 [arbitration fees] + \$8,492.60 [costs]).

ORDER

The court GRANTS

plaintiffs Greg Mooradian and Debra Mooradian's motion to withdraw from arbitration pursuant to Code of Civil Procedure section 1281.98.

The court orders

that the order compelling arbitration issued March 21, 2025 is vacated.

The court orders defendants

Erla Dagg Ingjaldsdottir, Tryggvi Thorsteinsson, Minarc, Inc., and MNM Mod.

Corp. to pay sanctions in the amount of \$35,920.10 to plaintiffs Greg Mooradian and Debra Mooradian.

The court orders
that the stay of this action made in the court's March 21, 2025 order is lifted.

The court sets a
Case Management Conference in this action on October 15, 2026, at 8:30 a.m.

The court orders plaintiffs
Greg Mooradian and Debra Mooradian to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 1, 2026

Robert B. Broadbelt III

Judge of the Superior Court